

STATE OF NEW YORK

9307--C

2025-2026 Regular Sessions

IN ASSEMBLY

December 10, 2025

Introduced by M. of A. COLTON -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Rules -- Rules Committee discharged, bill amended, ordered reprinted as amended and recommitted to the Committee on Rules

AN ACT to amend the general business law, in relation to requiring that all new motor vehicles sold at motor vehicle dealerships contain a space saver tire

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 396-pp to read as follows:

3 § 396-pp. Space saver tire requirement. 1. All new motor vehicles sold
4 at motor vehicle dealerships shall include a space saver tire compatible
5 with the motor vehicle sold. Such tire shall be properly secured to the
6 motor vehicle in a manner that prevents any damage to the motor vehicle.

7 2. This section shall not apply to:

8 (a) new motor vehicles sold with a run-flat tire.

9 (b) new motor vehicles that do not have a space to secure a space
10 saver tire.

11 (c) new motor vehicles sold with a full-sized spare tire.

12 3. Manufacturers shall be responsible for ensuring that all new motor
13 vehicles include a space saver tire compatible with the motor vehicle
14 sold as required by subdivision one of this section.

15 4. For the purposes of this section:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) "space saver tire" is a temporary smaller sized spare tire that
2 should only be used temporarily, allowing the vehicle to continue to be
3 driven at reduced speeds for limited distances.

4 (b) "run-flat tire" is a pneumatic vehicle tire designed to resist the
5 effects of deflation when punctured, allowing the vehicle to continue to
6 be driven at reduced speeds for limited distances, but cannot replace a
7 spare tire for safety and a longer than expected journey to a repair
8 shop.

9 (c) "motor vehicle" shall mean every vehicle operated or driven upon a
10 public highway which is propelled by any power other than muscular power
11 and commonly classified as a passenger automobile, sport utility vehi-
12 cle, light truck, pickup truck, van, minivan, or suburban, with a gross
13 vehicle weight rating of ten thousand pounds or less.

14 (d) "manufacturer" shall mean any person, partnership, corporation,
15 association, factory branch or other entity engaged in the business of
16 manufacturing or assembling new and unused motor vehicles for sale in
17 this state.

18 (e) "new motor vehicle" shall mean a motor vehicle sold or transferred
19 by a manufacturer, distributor or dealer, which has not been placed in
20 consumer use.

21 (f) "gross vehicle weight rating" shall mean the weight of a vehicle
22 consisting of the unladen weight and the maximum carrying capacity
23 recommended by the manufacturer of such vehicle.

24 5. Any person that violates the provisions of subdivision one of this
25 section shall be subject to a civil penalty of up to two hundred fifty
26 dollars for a first offense and up to five hundred dollars for any
27 subsequent offense. The provisions of this section shall be enforced
28 concurrently by the director or commissioner of a municipal consumer
29 affairs office, or by the town attorney, city corporation counsel, or
30 other lawful designee of a municipal or local government, and all moneys
31 collected thereunder shall be retained by such municipality or local
32 government.

33 § 2. This act shall take effect on the ninetieth day after it shall
34 have become a law.